

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 21-015
Amendments to Title 6, Chapter 3 of the Chickasaw Nation Code
(Children's Court Forms)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the District Court has been established and empowered by the Chickasaw Tribal Legislature in accordance with Amendment V to the Constitution, and

WHEREAS, the District Court has jurisdiction regarding children's matters.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 6, Chapter 3, all other sections of Title 6 to remain the same (additions are shown in red, deletions are stricken through):

"SECTION 6-303.7 **PETITION FORM.**

The prosecutor shall sign and file all Child Welfare petitions alleging a Child to be Delinquent, in need of Supervision, or neglected. Such petitions and all subsequent court documents in such proceedings shall contain a heading and title in substantially the following form:

~~IN THE DISTRICT COURT OF INDIAN OFFENSES~~
CHILDREN'S COURT
CHICKASAW NATION

The Chickasaw Nation	)	
In The Interest Of:	)	
	)	
_____	)	Case No.
	)	
An Alleged _____ Child,	)	
And Concerning	)	
	)	
_____	)	
_____	)	
Respondent(s)	)	

SECTION 6-303.9

SUMMONS.

Upon filing of a petition the Court Clerk shall issue a summons to the respondents and the Child as in other civil cases. The summons shall be in substantially the following form:

**IN THE DISTRICT ~~COURT OF INDIAN OFFENSES~~
CHILDREN'S COURT
CHICKASAW NATION**

The Chickasaw Nation)
In The Interest Of:)
)
_____) Case No. _____
)
An Alleged _____ Child,)
And Concerning:)
)
_____)
_____)
Respondent(s))

SUMMONS

The ~~Court of Indian Offenses~~ District Court
~~Children's Court~~
for the Chickasaw Nation to:

, Respondents.

YOU ARE HEREBY NOTIFIED, that a petition has been filed in the Court alleging that the above named _____ is a (delinquent) (neglected) Child (in-need-of-supervision) and that as the (parent) (guardian) (legal custodian) of said Child you have been named as the Respondent, all as more fully set out in the attached petition.

YOU ARE THEREFORE ORDERED TO APPEAR at the courtroom of the District Court of ~~Indian Offenses~~ for the Chickasaw Nation, 1500 North Country Club Road, Ada, Oklahoma, on the _____ day of _____, 20____, at the hour of _____ o'clock ____p.m. and to there remain subject to the call of the Court until discharged so that you may be advised of the allegations contained in the petition and may answer that you admit or deny the allegations of the petition.

YOU ARE FURTHER ORDERED, if the above named Child is in your physical Custody or subject to your control, to bring the Child to Court with you.

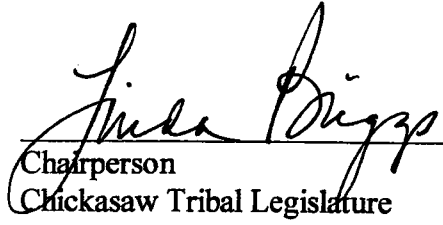
You may seek the advice of an attorney on any matter relating to this action at your own expense.

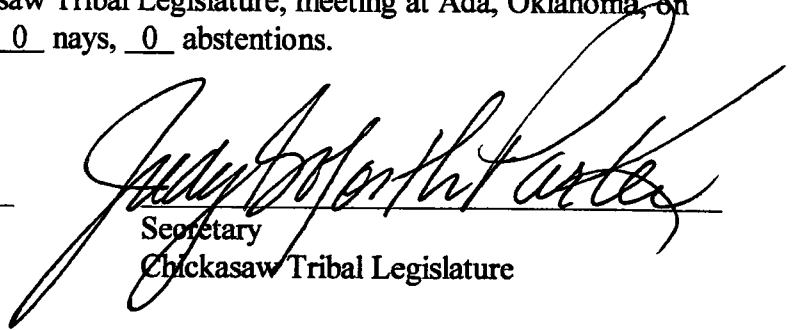
Court Clerk

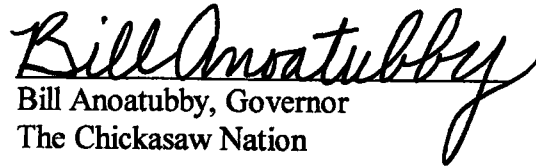
[Seal]

(Return as in other civil cases)

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on March 19, 2004, by a vote of 12 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: MAR 22 2004

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(Children's Court Forms)

Explanation: This resolution amends the name of the Chickasaw Nation District Court on 2 forms provided in 2 sections of Title 6, Chapter 3 of the Chickasaw Nation Code.

Requested By: Tim Colbert, Chairperson
Court Development Ad Hoc Committee

Presented By: Tim Colbert, Chairperson
Court Development Ad Hoc Committee